



INVITATION TO TENDER (ITT)

Contract for Provision of Cleaning Services to

The MAC (Metropolitan Arts Centre) Limited

Client Details & Contacts:

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SECTION 1

1. INSTRUCTIONS TO TENDERERS

1.1 Invitation to Tender

The Board of Trustees of the MAC (Metropolitan Arts Centre) Limited (“the MTC”) invites tenders for the provision of Cleaning Services at the MAC, St Anne’s Square, Belfast.

The Tenderer shall be deemed to have satisfied themselves before submitting their Tender as to the accuracy and sufficiency of the information stated in the Tender which shall (except in so far as is otherwise provided in the Contract) cover all the Tenderer’s obligations under the Contract and the Tenderer shall be deemed to have obtained for themselves all necessary information as to risks and any other circumstances which might reasonably influence or affect their Tender.

Tenders must be submitted in accordance with these Instructions to Tenderers. Failure to comply may result in a Tender being rejected. The Conditions of Contract provided as part of these Tender documents are in draft version. The MAC is unable to accept any changes made to these Conditions of Contract by the Tenderer. Any changes made to the Conditions of Contract at the time of Tender will be rejected and may result in the elimination of the submission. During the tendering period, the MAC reserves the right to make changes to the Contract Documentation, such changes shall be accepted by the Tenderer without reservation.

1.2 Submission of Tender

A tender shall only be accepted if;

- It is received before or no later than **12:00 noon on Monday 21 March 2016;**
- The submission is in the English language and prices are in pounds sterling and exclusive of VAT; and
- It is complete and fully compliant with the requirements detailed in this ITT.

Tenders received after this time will **NOT** be considered.

Four hard copies and 1 Electronic copy on CD or Data-stick of the Tender can be submitted by hand or by post. Submissions by post should be sent by registered mail or by recorded delivery. An official receipt must be obtained for the tender if delivered by hand. The tender documents must be placed in a strong plain envelope marked:-

“Tender for the Provision of Cleaning Services at the MAC”

Sealed and sent or delivered (bearing no name or other distinguishing matter or mark revealing the identity of the sender) to:

Paul McIlwaine
Director of Finance & Operations
The MAC
10 Exchange Street West
Belfast
BT1 2NJ

Further specific details on the submission of tenders are provided at **Section 3.**

1.3 Requests for Clarification

Tenderers may seek clarification in relation to this tender competition where they consider any part of the documentation or any other aspect of this procurement process unclear. Any clarification relating to this procurement must be emailed to procurement@themaclive.com. This will provide an audit trail of all clarifications received and responses issued. It is the tenderers responsibility to monitor clarifications issued and responses received from this email address. Where a tenderer believes that a clarification is confidential in nature, the request for clarification should clearly identify that the tenderer wishes the response to be kept confidential and not communicated to all tenderers.

In all circumstances, we reserve the right to communicate clarification responses to all tenderers at any stage, at our sole discretion. Clarification responses shall become part of the tender and must be treated as such by the tenderer. Should it be necessary to amend the tender documentation in any way, prior to receipt of tenders, all tenderers who have downloaded documents will be notified simultaneously by email. All such amendments will be made 6 calendar days before the closing date of this competition.

The closing date for clarification questions is **12:00 noon on Friday 11 March 2016**.

1.4 Site Visit

The MAC will host a Site Visit for the purposes of answering questions from potential Tenderers. The aim of the Site Visit is to:-

- Familiarise Tenderers with the site; and
- Enhance potential Tenderers' understanding and address any points of clarification that they may have on the Tender documents.

The Site Visit will be held on **Wednesday 9 March 2016 at 11:00am**.

If you wish to attend please complete the Site Visit Confirmation form attached to the Letter of Invitation and email it to procurement@themaclive.com. You should provide the names of those attending by **Friday 4 March 2016**. Please report to the MAC Box Office on arrival.

1.5 Procurement Timetable

The estimated timetable for the procurement is set out below:-

Procurement Stage	Date
Tender Commencement	26 February 2016
Site Visit	9 March 2016
Closing Date for Clarification Questions	11 March 2016
Tender Submission Date	21 March 2016
Decision on Preferred Tenderer	1 April 2016
Contract Signature	30 April 2016
Service Commencement	1 May 2016

1.6 Confidentiality

All information supplied by the MAC in connection with this ITT shall be treated as confidential by prospective Tenderers, except that such information may be disclosed so far as is necessary for the purpose of obtaining sureties, guarantees and quotations necessary for the preparation and submission of the Tender. Tenderers should note that the MAC shall use the tender documents for the purposes of evaluation.

1.7 Lowest Tender

The MAC reserves the right not to accept the lowest or any Tender or part thereof. Tenders are required to be kept open for acceptance for a period of twenty-six weeks from the closing date for submission of Tenders.

1.8 Formal Contract

The successful Tenderer shall be required to execute a formal contract with the MAC and until such execution, the successful Tender, together with the MAC's written acceptance, shall form a binding agreement in the Conditions of Contract. Any discrepancy or difference between the Tender and the Conditions of Contract the latter will prevail. The proposed contract conditions are shown at Appendix L.

1.9 Period of the Contract

The contract shall be for a period of two years, with the option of renewal for a further one year, at the sole discretion of the MAC, subject to agreement of the parties and satisfactory performance by the Tenderer.

1.10 Arithmetical Errors

Where examination of Tenders reveals errors or discrepancies which would affect the Tender figure(s) in an otherwise successful Tender, the Tenderer will be given details of such errors and discrepancies and afforded an opportunity of confirming or withdrawing his/her offer. If the Tenderer withdraws, the next Tenderer in competitive order will be examined and dealt with in the same way.

1.11 Appointment

The MAC will select a preferred Tenderer with a view to securing final agreement on the Contract within four weeks of selection. If no such agreement is reached within that period, the MAC reserves the right to enter into similar discussions with the next ranked Tenderer.

1.12 Sustainable Development Benefits

The MAC is committed to sustainable development and sustainable procurement and would wish to see Tenderers adopt a sustainable approach. Information and guidance about how to pursue a more sustainable future for Northern Ireland is available from:-

www.ofmdfmi.gov.uk/index/economic-policy/economic-policy-sustainable-development.htm

1.13 Canvassing

Any Tenderer who directly or indirectly canvasses any representative of the MAC concerning the award of Contract or who directly or indirectly obtains or attempts to obtain information from such official concerning the proposed or any other Tender will be disqualified. This should not, however deter any supplier seeking clarification in relation to the Tender. The Certificate as to Canvassing at Appendix E should be completed.

1.14 Contract Price

Prices submitted in the Form of Tender at Appendix B are to be fixed for the Initial Contract Period (2 years).

1.15 Conflict of Interest

Tenderers must confirm in their proposals that there would be no conflict or perceived conflict of interest in relation to their servicing this contract. Tenderers must complete the Conflict of Interest Declaration at Appendix C.

1.16 Collusive Tendering

Any tenderer who:-

- fixes or adjusts the amount of their Tender by or in accordance with any agreement or arrangement with any other person;
- communicates to any person other than the MAC or its authorised representative the amount or approximate amount of their proposed Tender;
- enters into any agreement or arrangement with any other person that such other person shall refrain from Tendering;
- offers, or agrees to pay or give or does pay or gives any sum of money, inducement or valuable consideration directly or indirectly to any person for doing or having done or causing or having caused to be done in relation to any other Tender or proposed Tender for these Services any act or omission shall, without prejudice to any other civil remedies available to the MAC, be disqualified.

1.17 General Conditions

The following general conditions will also apply to this procurement:-

- Tenderers may be required to furnish further information as to economic and financial standing prior to the acceptance of any tender.
- The MAC shall not accept any amendments to the contents of this document or any of its Appendices;
- Acceptance by the MAC will only be made by written instruction to the successful Contractor;
- The MAC shall not be responsible for, or pay for, any expenses or losses that may be incurred by any Tenderer in preparing their Tender proposals.

It is the responsibility of prospective Tenderers to obtain for themselves, at their own expense, any additional information necessary for the preparation of their Tenders.

1.18 Transfer of Undertaking and Protection of Employment (TUPE)

Tenderers are advised to seek their own legal advice with regard to the application of TUPE.

1.19 Performance Monitoring

During the Contract, the performance of the successful Tenderer will be regularly monitored and reported on.

Performance will be measured against the key criteria listed within Appendix A. A final list of KPI's and frequency of monitoring shall be agreed between the parties.

Assessment reports will be completed by the MAC personnel directly responsible for managing the Contract and most familiar with the Tenderer's performance on a day to day basis. The Tenderer will be made aware of any areas of 'poor' or 'unsatisfactory' performance as defined within the Performance Monitoring Schedule.

1.20 Tender Drawings

The following Drawings are provided in Annex 1 to assist the Tenderer complete their submission:

- The MAC - General Layout Drawings (Basement – 6th Floor)
- The MAC – Elevation Drawings (Detailing Windows)

1.21 Product Data Sheets

The successful tenderer shall be required to submit to the Operations Manager full details of Product Data Sheets for all cleaning consumables being used on the project.

SECTION 2

2. MAC CLEANING BRIEF

2.1 Background

The MAC opened in April 2012 in the heart of Belfast's Cathedral Quarter and is a powerhouse for social change through the creation and enjoyment of great art. In the period since opening, the MAC has been visited over 1,000,000 times by locals and tourists alike.

The MAC is artistically led and commercially driven with clear focus on the particular challenges which are associated with its start-up phase. It is critical now more than ever, in light of the difficult economic climate in which the entire arts sector finds itself, that the MAC's work in support of Northern Ireland's artists and their audiences continues. The shared vision for the development of the MAC was to:

- Create a significant lynchpin venue to drive increased footfall into the city centre;
- Consolidate the Cathedral Quarter as Belfast's central cultural destination; and
- Play a role in ensuring that Northern Ireland can deliver a varied and high quality cultural offering to visitors and residents.

The current aspiration and vision for the MAC is that by 2016, the MAC is:

- The leading cultural venue for creative and transformational artistic experiences in Northern Ireland;
- A bustling hub of artistic and audience interaction;
- A fun place to visit and a dynamic place to work in; and
- Internationally recognised as a creative and innovative organisation presenting best home-grown and visiting work.

Our mission is:

"to be a centre of artistic excellence that makes a positive difference to people's lives".

The MAC supports and showcases the best local and international theatre, dance, comedy and music as well as bringing the rest of the world to Belfast. It fuels the creative industries by nurturing and developing future generations of visual artists, actors, writers, directors, designers, dancers and musicians. In both the performing and visual arts, artists are able to work and exhibit alongside their international peers, connecting local practitioners to the global cultural grid. The MAC is playing a key role in establishing Belfast on the world's cultural circuit as a modern, inclusive and ambitious city, and it provides unique cultural experiences for all of Northern Ireland's citizens.

2.2 What We Do

The MAC presents an outstanding and accessible programme of artistic activity which is designed to attract the largest and broadest possible customer base while simultaneously supporting the artistic development of Northern Ireland-based artists across the art forms. We provide a high quality modern facility from which we deliver an outstanding and accessible programme of artistic activity through:

- **Live events:** We deliver a top-class programme of performance events including theatre, dance and music. We commission and co-produce events with both professional Northern Ireland artists and worldwide companies.

- **Visual art:** We curate a series of high profile exhibitions through the relationships/partnerships we have developed with national and international galleries, other visual art institutions and artists. We will also profile and show the work of Northern Ireland artists.
- **Learning and Participation:** Our programme focusses on increasing participation from disadvantaged communities. We deliver programmes that encourage engagement and offer unique access points for a wide range of participants from all ages and backgrounds. Programmes focus on schools and the wider community.

2.3 Tender Objectives

The MAC are now seeking to establish a contract for the delivery of Cleaning for the MAC – 10 Exchange Street West – Belfast and to appoint an experienced contractor who will be responsible for managing and delivering the specified Services in a flexible and responsive way. A quality, well managed cleaning service with associated services and tailor made to the MAC is required to provide a competitive solution to the needs of the MAC.

The MAC will have varied opening hours depending on performances. It is expected that the cleaning team will operate between the hours of 7.00am and 11.00am, dealing with foyers, galleries, entrances to buildings, meeting rooms and public areas and washrooms and theatres, dressing rooms and back of house areas. However, it is anticipated that the majority of cleaning services should be completed by 9.00am.

2.4 General Requirements.

The MAC requires a team of cleaners seven days a week. The tenderer is responsible for establishing the structure and size of the cleaning team to meet the requirements.

2.4.1 Staffing

- The contractor is responsible for payment of staff holidays, bank holidays, staff absence and any personnel issues that may arise in conjunction with the contractor and the MAC
- Duration and actual time of hours may change according to the demands of the business. The MAC will endeavour to keep changes to a minimum and give the contractor as much notice as possible.
- Where duration and time of hours may change permanently, the MAC will consult with the contractor to make the transition as smooth and employee friendly as possible.

2.4.2 Uniform

It is the responsibility of the contractor to provide appropriate clean and presentable uniforms.

2.4.3 Training

The contractor is expected to provide adequate technical training to its entire staff, and refresher training at appropriate intervals.

2.4.4 Window cleaning.

- The contractor is not responsible for the quarterly cleaning of the windows inside and out.
- The contractor will be expected as part of the normal cleaning service to remove any stains or marks on windows at eye level or below.

2.4.5 Mat rental and cleaning.

- The contractor will provide two 6x4 ft mats
- The mats must be changed/cleaned weekly

2.4.6 Sanitary bins.

- The contractor will provide 28 high quality feminine hygiene units
- The contractor will arrange the units to be serviced every four weeks

2.4.7 Pest control.

- The contractor will be responsible for pest control in the MAC
- The contractor will provide adequate, appropriate and discreet pest control in the building
- Pest control will conform with control of pesticides regulations, control of substances hazardous to health regulations and appropriate personal protective equipment will be provided to all personnel

2.4.8 Air care.

- The contractor will initially provide 6 air care units, to be placed according to instructions from the MAC and in consultation with the contractor
- The air care units should be serviced every six weeks

2.4.9 Purchase of Consumable products.

- The contractor will provide a supplier of high quality, competitively priced toilet tissue, hand towels, liquid hand soap and bin liners suitable to the dispensers of the MAC
- The MAC reserves the right to not use this supplier or change this supplier at any time.

2.5 Strategic Objectives

The key strategic objectives of the contract are:-

- To establish a contract with a Contractor who will provide a single point of responsibility for the management and delivery of all the specified Services at the Premises;
- To provide Services for the Client based on flexibility, continuous improvement and innovation;
- To engender and nurture a true spirit of partnership between the Contractor and the Client by seeking satisfactory solutions to issues and making a commitment to effective dispute resolution;
- To provide Services focused on quality, meeting the needs of the users of the MAC
- To implement a sustainable structure that encourages continuous value for money, continuous improvement and innovation.
- To integrate environmental considerations and delivery on social benefits through the performance of the Contract.

2.6 Operational Objectives

The key operational objectives and tasks of the Contractor in relation to the provision of the specified services are: -

- To provide a pristine working environment for staff and visitors to the MAC;
- To enable the staff working within the premises to carry out their business functions effectively with minimum disruption;
- To ensure that the services are operated in an efficient and cost effective manner with regard to their business activity;
- To ensure that the Contractor's staff are well presented, clean and tidy, polite, honest, respectful to others and willing to help;
- To reduce the overall environmental impacts of the premises, with particular reference to the catering and cleaning services as specified in this Contract;
- To report to and liaise with the Client's Representatives (and professional advisors) to compile and implement strategic policy for operating the Services in an efficient and cost effective manner;
- To ensure compliance with all relevant regulations including Health and Safety, and to liaise with statutory authorities as appropriate;
- To offer continual advice and proposals to the Client on methods of introducing additional value for money and innovation into the delivery of the Services;
- To ensure high levels of customer satisfaction.

2.7 Days on which Services Are Required

Services will be required Monday to Sunday throughout the year except for Christmas Day and Boxing Day.

2.8 Premises, Equipment, Utilities and Materials

For the contract period and in connection with the provision of the Services, the Client shall not be providing any cleaning equipment for the contract. The Client will endeavour to make available such storage space within the premises as is reasonable and available. The Client will be responsible for the maintenance of this equipment and the premises. Utilities (Power & Water) will be available – free of charge – for the use of the Contractor in the delivery of the services. The Contractor will be required to exercise due care and diligence in the use of utilities supplied.

The Contractor will be required to provide all equipment and materials, as necessary, to deliver the services specified.

2.9 Implementation of Operations

After award of Contract, the Contractor must arrange meetings with the Client to establish and agree day to day Operational Procedures. This should include arrangements for purchase orders and invoicing.

The Client will then require weekly updates with the Contractor during the period of implementation (i.e. between Award Date and Commencement Date of Contract), to discuss progress against the Implementation Plan and to assist in problem solving if any arise.

During this time, the Contractor shall undertake routine examinations and inspections of the Premises and Services necessary to assume its duties in full.

2.10 Cleaning Requirements

The Contractor shall provide a comprehensive Cleaning Service throughout the Premises, delivered in a safe and efficient manner. The Contractor shall take responsibility for maintaining the cleanliness of all internal cleanable areas including fixtures, fittings, furniture and finishes, to minimise degradation, enhance asset life cycle and ensure that the Client's high standards and image are maintained. The Contractor is required to provide a high quality service within the scope of this Specification. The standard as specified is to be evident at an agreed time depending on the venue during each working day.

In delivery of the Services the contractor will be expected to have a flexible approach in that additional tasks, not detailed below, will be undertaken in agreement with the Client to ensure a safe and clean environment.

The Contractor shall undertake all tasks normally associated with a professional cleaning contract, to ensure that the premises are maintained to a high level of general cleanliness and remain presentable and fit for their intended purpose.

The Contractor shall be responsible for monitoring the provision of the Services on a daily basis to ensure that a high quality service is consistently provided.

The Contractor shall be responsible for setting up and operating a safe system of work with regard to all aspects of its operation enabling the Contractor to establish and verify the whereabouts of his staff and subcontractors in relation to the performance of this contract.

Due to the nature of the Client's business, certain areas and rooms may be inaccessible for cleaning during core office times. The Contractor will be required to take this into consideration and have in place a system to ensure such areas are cleaned, as appropriate.

The Contractor is required to provide a high quality service within the scope of the Specification. Routine cleaning of the internal areas will be provided to the required service standard as described below.

Cleaning Standards

- To enable the requirements of the Client to be met as well as introducing an opportunity for the Contractor to use their skills and judgement to achieve a cost effective and efficient service, three standards of cleaning have been developed which are listed below. These standards will be applied in this contract as standard I, II, or III. The standards are to be applied to routine and periodic cleaning activities.
- Categories are assigned to areas within the Premises identifying the type of the accommodation. A cleaning standard has been allocated to each category of accommodation.
- The Contractor shall be responsible for monitoring the provision of the Services on a daily basis to ensure that the cleaning standards are adhered to.
- The contractor will ensure that only appropriate cleaning materials are used on all surfaces being cleaned and will be liable for any damage caused by inappropriate cleaning materials or excessive rubbing / abrasion being employed which causes damage to surfaces or leaves residue.
- In all cases objects and surfaces that have been cleaned must be clean, dry, dust free, free of smears, spots, stains, and residual cleaner.

- In all cases appropriate signage must be used when cleaning activities are being carried out which may pose a hazard to users of the building. Care should be taken when signage is being used in escape routes.

Standard I – Office Areas

- A good standard of cleanliness and appearance is required at all times, with evidence of a regular cleaning programme.
- All floors must be free from grit, dust and debris with no apparent removable stains. They must be clean and dry. Floor coverings are to be cleaned by the manufacturer's recommended methods and recommended intervals.
- All walls, skirtings, dado-rails, coving, radiators, pipes, vents, grilles, doors, doorframes, fittings and glass panels, window frames and sills must be free from debris, marks, and dust. They must be clean and dry with no evidence of residual cleaning agents. In particular, they must be free from finger marks, verdigris stains, runs, and cobwebs to full height.
- All chairs / seats and soft furnishings shall be clean, dry and free from dust.
- All work stations, screens, upholstered partitions, bookcases, chairs, shelves, cabinets, tables, pictures and coat racks must be free from debris, stains, marks and dust.
- All fittings shall be free from dust, marks and smears.
- All signage, including emergency signage shall be clean, dry and free of stains, marks and dust.
- All waste receptacles shall be emptied as necessary. Bins must be emptied, clean and dry inside and out, bin-liners replaced where necessary and bins returned to their original locations.
- All electrical equipment, excluding PC's and computer equipment, fixed and mobile, including but not limited to printers, scanners and plotters; telephones, faxes and photocopiers; and audiovisual equipment including but not limited to televisions, video equipment and overhead projectors, shall be free of debris, stains, marks and dust, using an appropriate cleaning method for this equipment so as not to damage the equipment. Particular attention should be paid to telephone equipment and keyboards by ensuring a suitable cleaning method is adopted to prevent cross-contamination.
- All cleaning methods used must be of a sufficient quality to meet these standards and to maintain any guarantees.

Standard II - High Usage Areas

- The requirements for these areas will be in addition to Standard I. Areas to which this service standard applies include, but are not limited to, the auditoria, galleries, workshops, reception areas, public waiting areas, passenger lifts, main stairwells, 6th floor conference/meeting rooms and public foyers & corridors. High Usage Areas require a high standard of cleanliness and appearance at all times and where there is a high volume of traffic regular cleaning through-out the working day. The standards below are in addition to Standard 1 - Office Accommodation and Other Comparable Areas.

- Remove spills and wetness from floor coverings as soon as discovered by the contractor's staff or notified to them and treat to minimise damage and reduce the risk of staining and risk of slippage. Wetness on hard floors near door ways should be anticipated on wet days. Use only approved specialist materials within any indicated timescales for the removal and treatment of spills. The pile of the carpets in the main traffic areas must be evenly brushed and opened against the flow of incoming traffic.
- All waste and other rubbish receptacles to be removed frequently to central rubbish collection/disposal arrangements.
- All handles to be wiped down daily with disinfectant.
- Metal surfaces must be treated with an appropriate cleaning and where applicable polishing agent including all brass such as door plates, name plates and kick boards.
- The areas around vending machines shall be kept free from evidence of stains and spills. Floors and walls shall be washed at regular intervals. This cleaning standard is to be in evidence daily and ongoing as necessary throughout the day.
- Particular attention is to be paid to main entrances / exits on wet and snowy days. Floors must be kept as dry as possible by frequent mopping and deployment of fresh mats.

Standard III - Hygiene Areas

- The requirements for these areas will be in addition to Standards I and II. Hygiene Areas include areas such as toilets, bathrooms, shower rooms, kitchen/galley facilities and first aid rooms. Under this standard the increased risk of micro-organism build up and cross contamination is recognised and prevented.

- Toilet and Shower Room Areas

- The Contractor shall ensure that he identifies by colour code all equipment and materials used in the cleaning of toilets, bathrooms and shower rooms and maintain separation between those cloths and sponges used for toilet areas from those used for shower and wash basins. The contractor must ensure that all these items are never used outside these areas and only for designated type of use.
- All sanitary ware, including showers, shower heads, sinks, wash hand basins, WC bowls, seats, covers, hinges, tops, undersides, rims, taps, overflows, outlets, chains, plugs, urinals, brushes, toilet roll holders, tiled surfaces, splash backs, and vanity units must be free from scum, grease, hair, scale, dust, soil, spillages and removable stains. Particular attention must be paid to ensuring door and cistern handles and latches are thoroughly cleaned to prevent cross contamination.
- Walls, doors, cubicle partitions and surfaces shall be wiped by a disinfectant solution regularly. Mirrors must be clean and free from smears.
- Soap dispensers must be filled, operating correctly with clean nozzles, and the external surfaces must be clean dry and free from smears. All toilets, bathrooms and shower rooms shall be kept fully stocked with supplies and shall be made available at all times. Towel holders/dispensers must be clean, dry and free from dust, marks and smears with clean towels fitted. The external surface of hand dryers must be clean, dry and free from smears.
- Feminine Hygiene Facilities are required in the Premises. The Contractor shall

provide regular collections of the Feminine Hygiene receptacles and will ensure receptacles are not overflowing or become foul smelling. The feminine hygiene receptacles are to be kept free of marks, stains and dust. The Contractor is also required to ensure that all feminine hygiene vending machines are fully stocked and the external surfaces are clean, dry and free from smears and dust

- Tea Points/Galley Areas

- Sinks, and their surrounds, including splash backs, ledges, inner and outer surface of bowls, overflows, plugs, drain holes, taps, supports, pipes to be dry and free of all soilage, stains, spills, and debris. No build up of soilage or staining materials to be permitted.
- All chrome, brass and other metal finishes to be maintained so as to be free of all tarnish, stains and similar materials.
- The external surfaces of kitchen appliances including, but not limited to, cupboards, refrigerators, microwaves, dishwashers, kettles/boilers and their surroundings to be sanitised, clean, dry and free from marks, debris and smears.
- The internal surfaces of kitchen appliances, cupboards, to be clean and fresh and free from crumbs, stains and odours.
- Refrigerators are to be defrosted and cleaned internally, weekly or more frequently if necessary.
- Dishwashers are to be uploaded and emptied at least once per day or more frequently if necessary.

Outside Areas

- The Contractor will be required to empty and clean the cigarette bin situated in the external smoking area, outside the perimeter fence and keep the surrounding area free from accumulations of debris.
- Keeping frontage and rear exits clean and free from litter.

Schedule of Accommodation – Appendix A – includes:-

- a full schedule of the functional areas.
- details of all the rooms layouts in The MAC.

Other items that are required for this site are:

- Feminine Hygiene,
- Supply of consumables

2.11 Washroom Consumables

The Contractor shall supply all consumables necessary for a complete washroom service. This shall include dust mats, bin liners, feminine hygiene services (including the provision of sanitary disposal bins, disposal of sanitary waste and sanitary vending consumables) which shall be part of the fixed cost element of the Contract.

The supply of toilet tissue and soap will also be required.

A price list of washroom consumables must be included within the pricing schedule and this price list will be fixed for the initial period of contract. Prior to restocking, approval must be given by the MAC Operations Manager to ensure only the appropriate stock levels are maintained.

The Contractor shall ensure compliance with all COSHH Regulations, will ensure that all consumables used by him shall cause no harm to the environment.

The Contractor shall provide, and ensure the availability of all materials and equipment necessary to deliver the Service. The Contractor shall ensure that all materials, products and equipment are stored and used under proper control, safely and in accordance with the manufacturer's instructions. The Contractor shall provide to the Client at the outset of the contract and subsequently on request data/information and COSHH assessment sheets for all materials used on site.

2.12 Restaurant/Cafe - Cleaning Requirements

The Contractor shall be responsible for cleaning the floors and general furniture / surfaces within the café/restaurant seated areas daily.

2.13 Equipment

The Contractor is to provide all cleaning equipment at their own expense.

Any new equipment should avoid products containing or manufactured using ozone depleting and high global warming potential substances such as hydrochlorofluorocarbons (HCFCs), HFCs, halons, carbon tetrachloride, 111 trichloroethane and bromochloromethane.

Equipment should use resources, such as energy and water, efficiently (e.g. rated B or better under the EC's energy labelling scheme and are HCFC and HFC free if they use refrigerants) and is to be specified to achieve value for money taking a whole life costs approach.

If during the contract the Client provided any Cleaning equipment, the Contractor will have a duty to take proper care of the equipment provided by the Client and to return it at the end of the contract in good condition, subject to fair wear and tear.

Energy and water may be provided to the Contractor on the basis of free supply. The Contractor is required to use them economically and to institute and maintain procedures to monitor/control and minimise the usage of energy and water.

2.14 Waste Removal

The Contractor will be required to assist with waste removal from inside the building to external collection points and to co-operate with any waste management schemes that the client may require during the life of the contract.

The Contractor is required to provide bin/waste bags for use at office floor level. Bin / waste bags are required to aid recycling of waste in line with government targets for reducing the amount of waste to landfill. (External bin storage is provided by another contract.) The costs of these are part of the fixed price for the delivery of the service.

The Contractor shall use all reasonable endeavours to ensure that any waste generated in the delivery of the contracted services is disposed of in a compliant manner in keeping with the Client's policy.

2.15 General Waste

The Contractor will set up, manage and keep clean the waste collection area.

The Contractor will provide and bear the cost of all waste bags.

2.16 Recycled Waste

The Contractor shall on a continual basis seek to increase the volume and range of goods that are recyclable. The Contractor shall demonstrate their commitment by providing the Client with information on current levels of recycling and their plans to increase this.

The Contractor shall be responsible for recycling as a minimum, paper, cardboard, glass, plastic bottles, cans and food waste.

The Contractor shall, through promotion and education of staff continuously seek to increase the amount of materials to be recycled and shall have targeted publicity campaigns during the contract period.

2.17 Performance Monitoring

Performance monitoring is key to ensure that value for money is achieved. Performance monitoring and Contract Management will be taken forward in three tiers:-

- Daily Operational Management;
- Contract/Performance Reviews; and
- Escalation Procedures.

Daily Operational Management –

The Contractor shall be responsible for implementing a self-monitoring, self-reporting and self-regulating system which manages the performance and standards of Service delivery. During implementation of the contract, the Contractor shall meet with the Client to agree day to day Operational Procedures, setting out the specific requirements for the building and Key Performance Indicators (KPI's). This day to day Operational Procedure is to be signed off by the Client.

Using the agreed KPIs, the Contractor shall: -

- a. Develop clear operating procedures for staff to ensure service standards are understood, maintained and recorded on a daily basis;
- b. Establish management information systems to capture and record information in support of performance monitoring and to enable regular robust performance reporting;
- c. Provide monthly performance reports to the MAC Operations Manager.

The Contractor will nominate a representative, who will provide regular contact with the Client, who will be the daily point of contact for operational queries.

The Contractor and the Client shall hold review meetings on a regular basis to assess the performance and effectiveness of the Services against the KPI's. The frequency of the meetings is to be mutually agreed between the Contractor and Client prior to contract commencement, but Contractors should be prepared to meet monthly. Where possible, the Contractor shall deal directly with the Client to resolve complaints. At the request of the Client these complaints shall be escalated if necessary.

Contract Management

Periodic review meetings will be scheduled with the MAC Operations Manager and the Contractor. These meetings shall be held at least every two months, however may be requested at more regular intervals in the event of poor performance. The meeting will review the performance across the previous six months and will look at the summarised management information for this period. The meetings will also be used to investigate the potential for savings or to improve efficiency or performance.

The Contractor shall provide Service Reports at their own cost to support and inform regular review meetings between the Contractor and Client. Each Service Report shall detail the following: -

- a. Delivery of services supplied and performance in the previous six month period;
- b. Contract variation requests;
- c. Details and status of all complaints;
- d. Forthcoming changes in legislation;
- e. Health, Safety and environmental breaches and recordable accidents, incidents and near misses relating to the utilisation of all premises;
- f. Training carried out with Contractor Staff;
- g. Service Deductions made;
- h. Service delivery proposals and contractual issues if any changes have occurred.

Escalation Procedures

In the event that complaints cannot be resolved between the Client and the Contractor, the Client will escalate this to a senior member of staff (Authorised Representative). At the MAC's Operations Manager's request, the Contractor shall also escalate this within their organisation and agree to meet with the MAC's Operations Manager's to discuss complaint resolution.

2.17 Change of Requirements

The Client is entitled to add or delete Services from the contract, as operational requirements change. As such, the Client offers no guarantee that the value of the contract will remain unchanged throughout the contract period. Any cost implications will be in line with the pricing schedules submitted at tender stage.

All changes to the Specification shall follow the Change Control process.

2.18 Contractor's Staff

The Contractor is required at all times to provide staff having skills, qualifications and experience commensurate with the Services to be provided. The Contractor shall ensure all staff, whether permanent or temporary/relief, are in possession of appropriate skills and qualifications to ensure that the services specified are delivered to the required standards. The Contractor shall ensure that the qualifications and training of staff meets all relevant statutory requirements for delivery of the services by employing an appropriate training regime throughout the duration of the contract.

Contractor's staff must at all times act and conduct themselves as ambassadors for the Client in the executing all of their duties. They must have due care of, display due diligence towards and respect Client facilities and property.

The Client reserves the right to refuse admission to any Contractor Staff who behaves in an inappropriate manner.

Contractor's staff shall ensure that all tasks carried out under this contract are conducted with the minimum of inconvenience to all building users or disturbance to the Client's business. Where a level of inconvenience cannot be avoided, this is kept to an absolute minimum and the Client's expectations are effectively managed through advance warning and regular updates.

The Contractor's uniforms shall be worn at all times when on duty. The Contractor shall be responsible for ensuring that its operatives maintain a high standard of personal cleanliness and hygiene at all times.

Contractor's staff shall be fully conversant with the requirements of the contract, the need for confidentiality and fully and appropriately briefed on their task and in the Client's use and occupation of the premises.

Contractor's staff are required to be helpful and co-operative to the Client users of the premises and their visitors.

The Contractor shall ensure that all staff receive training in customer care techniques and equal opportunities / diversity training that will ensure that they deal with all occupants and visitors in an appropriate manner.

All Staff employed in carrying out the service must be regularly trained for their various tasks. This training should cover cleaning agents, methods, equipment and machines used; waste and water management and aspects of health, safety and the environment.

The Contractor shall maintain an appropriate number of managerial, supervisory and operational staff to ensure delivery of the Services in accordance with the Specification. This shall include a competent and qualified team to manage and deliver the services in accordance with the Specification; these staff will be identified as Key Personnel.

A facility manager or co-ordinator should be nominated to organise and supervise the Services. The appointed person should stay in contact with the Client or nominated Representative and be contactable during normal working hours. The facility manager or co-ordinator must be sufficiently trained in the fields of occupational health and safety standards, application techniques and environmental issues.

In the spirit of continuous improvement, the Contractor shall carry out a strategic review of resources to improve the efficiency of operation.

2.19 Keys

The Contractor's responsible person may be issued with keys / access cards to The MAC, for which they will be responsible. In the event of such keys being lost, the Contractor shall be responsible for the costs of replacing locks.

Under no circumstances shall the Contractor's staff: -

- disclose any security or key pad codes,
- loan or supply the keys to the premises to any unauthorised persons,
- allow/bring unauthorised persons onto the premises.

The Contractor will be liable for any loss, damage or expense caused as a direct result of: -

- the Contractor's staff failing to properly secure the premises; or the Contractor's staff failing to properly carry out any of the other duties so required by the Contract Manager;
- the Contractor's staff having disclosed security or key pad codes to unauthorised persons;
- the contractor's staff having loaned or supplied the keys to the Premises to unauthorised persons

In the event of the Contractor's staff triggering any alarm systems, the Contractor will be liable for any costs incurred as a result of this and / or for any alternative security measures required.

Contractor's staff must immediately report to the Client, any incidents of damage, vandalism or irremovable graffiti which they encounter during the course of their duties. In the event of a break-in, Contractor's staff should not interfere with any possible evidence but contact the Police and the Contract Manager or his/her representative as soon as possible.

2.20 Emergency Procedures within the building

The Contractor shall ensure that all Contractor's staff are aware of the protocols to be used in case of an emergency. They shall participate fully in the testing and implementation of the Client's emergency management procedures including evacuation drills, fire drills and security emergencies. The Contractor shall inform and train their staff in the pertinent procedures and methods.

2.21 Sustainability

The MAC is committed to delivering on sustainability objectives. As such several sustainability aspects will be incorporated into the Contract in terms of: -

- Economic;
- Environmental; and
- Social.

2.22 Health and Safety

The Client has overall responsibility for the Health and Safety management at the premises in accordance with the relevant legislation. The Contractor shall ensure compliance with all relevant Health and Safety legislation.

The Contractor shall, when delivering the Services, ensure that at all times the protection of the Health and Safety of all building occupants; staff, employees, users, visitors, contractors and members of the public. The Contractor shall adhere to the principles of ISO 18001 when undertaking his responsibilities in relation to Health and Safety. All services and systems shall be managed in line with the Disability Discrimination Act at all times.

The Contractor shall comply with the Client's Smoking, Health and Safety and Security Policies.

The Contractor shall ensure that all Health and Safety Risk Assessments, Method Statements, Control of substances hazardous to health (COSHH) Assessments and other associated activities for which he has responsibility/control at the Premises are in place and remain up to date.

The Contractor shall comply with all requirements under Reporting of Injuries, Diseases and Dangerous Occurrences Regulations (RIDDOR). The Contractor shall inform the Client immediately by telephone and e-mail of all near misses and accidents resulting in injury and provide written reports of all accidents within 5 working days of any accident taking place relating to Contractor Staff, or the public.

The Contractor shall comply with all the relevant Health and Safety and statutory requirements when transporting contractor staff between premises in order to deliver the Services.

The Contractor shall be required to report to the Client on all Health and Safety matters and conduct quarterly reviews. The Client requires the Contractor to be continuously up-to-date with changing legislation, any advances in technology that may affect Health and Safety facilities and equipment, in order to provide comprehensive professional advice for all Health and Safety and associated matters.

A summary of reviews carried out and matters arising from the reviews should be presented for the bi-annual review meetings.

2.23 Risk Management

In conjunction with the Client, the Contractor shall develop a risk register for its services at each site. The Contractor shall demonstrate the ability to co-ordinate all aspects of risk management including close liaison with the Client. The Contractor shall have sole responsibility for the compilation and updating of the risk register. Information on risks and mitigations being put in place will be forwarded on request to the Client.

2.24 Business Continuity

The Contractor shall ensure that a Business Continuity Plan is developed to ensure that the services can continue to be delivered at the Client's premises in situations such as failure of the Contractor's IT systems, temporary closure of the Contractor's own premises, difficulty in obtaining supplies, industrial action by Contractor Staff or other parties, loss of utilities, supplies failure, severe weather, Staff sickness etc.

The Contractor shall support the Client's Business Continuity planning by offering practical advice on issues pertaining to this contract.

2.25 Handover of Services on Contract Expiry

On the expiry, or earlier determination, of the Contract, the Contractor shall: -

- Comply with the TUPE requirements in the Conditions of Contract Clause B10;
- Ensure there is no diminution of the Services up to and including the final day of the Contract Period;
- Ensure that all work is transferred to any new contractor or contractors as smoothly and efficiently as possible;
- Draw any outstanding work to a close at an appropriate stage as agreed with the Client;
- As requested, provide the Client with information pertaining to the services and where applicable hand over appropriate documentation;
- Return to the Client any security passes, access cards, keys equipment etc owned by the Client and used by the Contractor;
- Co-operate fully with any incoming contractor or contractors.

2.26 Other Interrelated Contractors

Contractors shall be required to work with third party suppliers to ensure disruption is kept to a minimum.

SECTION 3

3.0 SELECTION, QUALITY & COMMERCIAL RESPONSES

3.1 Format of Submissions

Tenders responses are required to be submitted in three parts, each part to be submitted in a **separate envelope**, which will then be enclosed in the main tender envelope as described in **Paragraph 1.2**. The three parts of the tender are:

- 3.2 Selection (Parts A and B);**
- 3.3 Quality; and**
- 3.4 Commercial.**

3.2 Selection

Tenderers are required to provide responses to each of the questions set out at 3.2.1 to 3.2.4 below and any additional attachments specified. Responses should then be enclosed in a sealed envelope marked “**Selection Response**” and further included in the main Tender Envelope as described in Paragraph 1.2.

Part A – Selection - Technical & Professional Ability

3.2.1 Previous Relevant Experience

(Pass/ Fail)

Previous Relevant Experience	
To establish the operational capability of the Tenderer to provide high quality Cleaning Services, to a standard commensurate with the status of the MAC.	
i)	Describe the principal areas of business activity of your organisation, detailing its history and the type of services provided. If you are a relatively recently established company or a start-up business please detail your past experience and how this supports your application. Response (maximum 1 x A4 Font size 12)
ii)	Please describe in detail your current and previous experience of providing services similar in size and scale and how you meet the requirements outlined in the MAC specification (section 2) and how it is relevant to this tender. Response (maximum 2 x A4 Font size 12)
iii)	Please provide at least one (up to 3 allowed) example(s) of your past experience (within 3 years of the date of the tender return) demonstrating your ability to provide the MAC with the services being sought. Details must include: • Name of the contract awarded • Customer name and address • Date awarded • Expiry Date • Period of the contract and annual contract value • Brief description of the scope of the contract and services required. Response (maximum 1 x A4 Font size 12 per example)

3.2.2 Quality Standard

(Pass/Fail)

Quality Standard
i) Please detail your business approach to quality management and what systems you use to ensure high quality delivery at all times. Please highlight if your organisation holds a recognised quality assurance accreditation.
Response: (maximum 2 x A4 Font size 12)
<i>Note: The MAC reserves the right to request a copy of your organisation's quality assurance certification and/or quality assurance process/manual at a future date.</i>

3.2.3 Financial Information

(Pass/Fail)

To demonstrate your financial ability to support the delivery of this contract	Please provide details below or attach to tender response as appropriate
i) Company Annual Turnover for the last three years (including if under different trading names).	
ii) Bank Details: Please provide contact details to enable bank reference if required: Bank Name Address & Phone Number Contact, Position and email address.	
iii) Please submit a copy of the following as appropriate.	
Last two years audited accounts and management profit and loss accounts. If appropriate, also include the consolidated accounts of the ultimate Holding Company.	
iv) Please provide details of your forecast for revenue/ expenditure for your current financial year.	
v) Please detail any significant change in your financial situation since the last accounts have been submitted.	

Part B – Selection – Other Documentation Required

3.2.4 Tenderers are required to complete and submit the following documents. (Pass/Fail)

Appendix C	Conflict of Interest Declaration
Appendix D	Company Contact Details Form
Appendix E	Certificate as to Canvassing
Appendix F	Fair Employment Declaration
Appendix G	Environmental Management Questionnaire
Appendix H	Contractor's Insurance Questionnaire
Appendix I	Certificate of Bone Fide Tender

All documentation must be clearly labelled with the appropriate Appendix letter.

3.3 Quality Response

Tenderers are required to provide responses to each of the questions set out at 3.3.1 to 3.3.3 below and any additional attachments specified. Responses should then be enclosed in a sealed envelope marked “**Quality Response**” and further included in the main Tender Envelope as described in Paragraph 1.2.

3.3.1 Implementation/Resource Structure/Contingency Planning

(50 Marks)

i) Implementation Plan Tenderers must demonstrate how they would ensure a smooth commencement of this contract to guarantee the delivery of a quality service from the Contract’s commencement date. • This should include details on how the Contractor will allocate resources, assign tasks and monitor progress. • Tenderers must detail what systems will be used to communicate and interface directly with The MAC Operations Manager. • The plan must include, key dates, goals and milestones to ensure delivery of this service. Overall Response to Section i) (Maximum 2 x A4 pages Font size 12)
ii) Staff/ Resource Structure Please provide your proposed organisational structure detailing the proposed management team and staffing and who would be responsible for delivering the required services. Please outline what you consider to be the key responsibilities that would be allocated to management and supervision, across all activities. Overall Response to Section ii) (Maximum 2 x A4 pages Font size 12)

3.3.2 Approach to Delivering the Required Service

(100 Marks)

Approach to Delivering the Required Services (Section 2) To establish the approach of the Tenderer, in terms of the brief and quality, to the proposed supply of the services.
i) General Summary • Describe how the Tenderer will provide the MAC with the required services described in the MAC Cleaning Services Brief at Section 2? • What do you consider are the key requirements of achieving a successful working partnership between the service provider and the MAC? Response (Maximum 2 x A4 font size 12)
ii) Continuous Improvement Please detail your approach to Continuous Improvement of services. Response (Maximum 2 x A4 font size 12)

Performance Management
Tenderers <u>must</u> demonstrate how the standard of services delivered will be monitored and reported during the life of the contract. This should include details on:- • The Performance Management System which will be employed to monitor the quality of operational Services and also the critical success factors, service levels and key performance indicators (KPI's) that would be applicable to this contract. • Details on any management information and reporting systems which will be in place on commencement of contract to ensure the delivery of a quality service, and how these systems will be used to continuously improve service delivery. Details on the reports available for Performance and Contract Reviews must also be provided. • What systems will be in place to communicate with The MAC Operations Manager to ensure the smooth running of the contract and enable issues to be dealt with in an effective manner. • Tenderers must also detail the procedures for escalation in the event that problems cannot be resolved at the operational level.
Overall Response to this Section (Maximum 2 x A4 pages Font size 12)

3.4 Commercial

Tenderers are required to provide a responses to question 3.4.1. Responses should then be enclosed in a sealed envelope marked “**Commercial Response**” and further included in the main Tender Envelope as described in Paragraph 1.2.

3.4.1 Presentation of Financial Offer

(300 Marks)

Tenderers should complete the Tender Offer at **Appendix B**.

Prices must only be provided within the Tender Form and should not be included within any other tender documentation. Including pricing, except where requested for purposes of illustration within responses in the Selection or Quality envelopes, may invalidate your tender. Costs that are not included within the Tender Form will be considered to be absorbed by the tenderer. All areas of the Tender Form schedule must be completed in full.

3.5 Checklist –Information to be returned with the Tender

CHECK SHEET INFORMATION TO BE RETURNED WITH THE TENDER		
a) Selection	Envelope 1	
Tender Response	Responses to Part A - questions at 3.2.1-3.2.3 Part B - Documents below uploaded	Yes / No
Appendix C	Conflict of Interest Declaration	Yes / No
Appendix D	Company Contact Details Form	Yes / No
Appendix E	Certificate as to Canvassing	Yes / No
Appendix F	Fair Employment Declaration	Yes / No
Appendix G	Environmental Management Questionnaire	Yes / No
Appendix H	Contractor's Insurance Questionnaire	Yes / No
Appendix I	Certificate of Bone Fide Tender	Yes / No
Appendix J	Health and Safety Questionnaire	Yes / No
b) Quality	Envelope 2	
Tender Response	Responses to questions at 3.3.1-3.3.3	Yes / No
c) Commercial	Envelope 3	
Appendix B	Completed and signed tender form	Yes/No

SECTION 4

4.0 EVALUATION OF TENDERS

4.1 Evaluation Approach

The MAC will use the M.E.A.T. (Most Economically Advantageous Tender) criteria in the evaluation of the tenders. Tenders will be evaluated on the basis of the criteria set out in the remainder of this Section 4.

The assessment process will comprise of two stages; i.e., Selection and Award.

Tenderers must not make assumptions that the MAC has prior knowledge of their organisation or their service provision. Tenderers will only be evaluated on the information provided in their response.

STAGE 1 – SELECTION

In order to pass the Selection stage, tenderers must demonstrate they meet the following minimum standards of technical or professional ability (Part A) and that they have returned and completed the other documentation required (Part B).

4.2 Selection Response (Pass/Fail)

Part A - Technical & Professional Ability

Question	Evaluation Criteria
3.2.1 Previous Relevant Experience	(Pass/ Fail)
3.2.2 Quality Standard	(Pass/ Fail)
3.2.3 Financial Information	(Pass/ Fail)

Pass / Fail

Tenderers will be assessed on their ability to meet all of the minimum standards of technical or professional ability using the following definitions.

- Pass – The Tenderer has fully demonstrated their ability to meet all of the minimum standards of technical or professional ability in their response to each individual Question 3.2.1 to 3.2.3 and has provided any additional documentation requested.
- Fail –The Tenderer has failed to sufficiently demonstrate their ability to meet all of the minimum standards of technical or professional ability in their response to each individual Question 3.2.1 to 3.2.3 and has failed to provide any additional documentation requested.

Part B – Selection – Other Documentation Required

Question	Evaluation Criteria
3.2.4 Tenderers are required to complete and submit all of the documents listed at paragraph 3.2.4.	(Pass/ Fail)

Pass / Fail

Tenderers will be assessed on their ability to provide all of the documentation requested in 3.2.4 using the following definitions.

- Pass – The Tenderer has submitted all of the documentation requested in Paragraph 3.2.4 fully signed and completed and has provided any additional documentation requested.
- Fail – Where the Tenderer has failed to submit all of the documentation requested in Paragraph 3.2.4 fully signed and completed and has failed to provide any additional documentation requested.

All tenderers who have demonstrated they meet the standards in Part A and have returned all of the other documentation in Part B will proceed to Stage 2. Failure to meet any of the minimum standards in Part A or failure not to have returned or completed all of the other documentation in Part B will result in the tender being eliminated from the competition.

STAGE 2 – AWARD

All tenderers who pass Stage 1 will have their tenders assessed against the Quality and Commercial criteria listed below. Tenderers must address each criterion fully. Whilst every endeavour has been made to provide tenderers with an accurate description of the requirements, tenderers should form their own conclusions about the methods and resources needed to meet those requirements. The MAC cannot accept responsibility for tenderers' assessment of the requirement.

4.3 Quality Response

40%

Quality responses will be scored out of a weighted total of 200 marks. The total weighted score for each tenderer shall be divided by 5 in order to reduce proportionately to the agreed Quality ratio. All Tenderers who meet the selection criteria will be evaluated using the following scoring and weightings:

Criteria	Weighting	Marks
3.3.1 Implementation/Resource Structure	10	50
i) Implementation Plan	5	25
ii) Resource Structure	5	25
3.3.2 Approach to Delivering the Required Service	20	100
i) General Summary	10	50
ii) Continuous Improvement	10	50
3.3.3 Performance Monitoring	10	50
Performance Monitoring	5	25
Total	40	200

Consistency of Scoring

To ensure consistency and equity the evaluation panel will assign scores for the quality of response using the scores and descriptors below:-

Score	Descriptor
0	Failed to address the criterion.
1	Poor proposal to address the criterion.
2	Limited proposal to address criterion.
3	Acceptable proposal to address the criterion.
4	Good proposal to address the criterion.
5	Excellent proposal to address the criterion.

If tenderers score 0, 1 and 2 in any of the quality above then it shall be deemed that they have failed to meet the specification and their tender will be eliminated from the competition.

4.4 Commercial Response

60%

For those tenders passing the quality assessment, the following formula will be used to evaluate Cost:-

$$1. \frac{\text{Tendered Total Sum}}{\text{Lowest Tendered Total Sum}} \times 60 = X\% \times 5 = \text{Score out of 300}$$

- The Tendered Total Sum shall be the total sum of the costs for 2 years as shown in Table 1 of Appendix B.

Tenderers should note that the MAC is not obliged to accept the lowest or any tender submission.

APPENDICES

A PERFORMANCE CRITERIA

B TENDER FORM - For the Provision of Cleaning Services to the MAC

This Tender Form (Appendix B once completed) should then be enclosed in a sealed envelope marked “Commercial Response” and further included in the main Tender Envelope as described in Paragraph 1.2.

To: The MAC (Metropolitan Arts Centre) Limited Board of Trustees

I/We hereby offer to supply and deliver to you above mentioned services which shall be ordered by you in accordance with the figures as detailed below.

Table 1 – To be completed by Tenderer

Staffing Costs	Number of Staff	No Hours / Day	Total No Days Year	Hourly Rate	TOTALS COSTS / per year
Operational Staff Costs			363		
Consumables/Disposables	List	Quantities		Cost	SUB TOTALS £
Equipment Costs - List	Hire/ Purchase	Quantities		Cost	SUB TOTALS £
Other Costs					SUB TOTAL £
					TENDER TOTAL £ per annum x 2 yrs Excl VAT

Schedule of Rates for Events

Tenderers are asked to complete the schedule for charges for labour per hour as and when required for additional services.

Schedule of Rates	Hourly Rate Excl VAT	Daily Rate Excl VAT
Staff Role - Supervisor		
Staff Role - Cleaner		

Note: All figures are net of VAT.

In the event of this Tender being accepted by you and without prejudice to the formation of a binding contract on my/our part upon notification to me/us of your acceptance of the Tender.

As witness my/our hand this day of 2016.

Tenderer:

Signature (1)Signature (2).....

Registered Address:

C CONFLICT OF INTEREST DECLARATION

With reference to Section One, paragraph 1.15 of the Instructions to Tenderers, please complete where appropriate.

I/We warrant that:-

1. There **would be no** conflict or perceived conflict of interest in relation to the personnel or type of work involved in this contract.*
2. There **could be** a possible conflict or perceived conflict of interest in relation to and their involvement in this contract.*
3. Please explain what the possible conflict or perceived conflict of interest may be and who it relates to and how it could have an adverse effect on this contract.

***Delete as Appropriate**

Signed:

Block Capitals:

for and on behalf of:

Date:

D CONTACT DETAILS

Please complete this form with your Company details and include it with your tender submission:

- 1 Company name: _____
Name of person to whom all
correspondence should be addressed: _____
- 2 Address: _____

- 3 Postcode: _____
- 4 Telephone number: _____
- 5 Fax number: _____
- 6 Name of person to contact in connection
with this submission: _____
- 7 Position in Company: _____
- 8 Telephone number:
(if different from above) _____
- 9 Fax number:
(if different from above) _____
- 10 e-mail address: _____
- 11 Mobile telephone number: _____
- 12 Website address: _____
- 13 Number of employees in Company: Full time _____ Part time _____
- 14 VAT Registration Number: (if applicable)
- 15 Type of Organisation: Individual, Limited Company, Partnership etc:

E CERTIFICATE AS TO CANVASSING

I/We hereby certify that I/we have not and will not canvas or solicit any Trustee, Member or Employee of The MAC in connection with the preparation, submission and evaluation of this Tender or award or proposed award of the Contract and that to the best of my/our knowledge and belief, no person employed by me/us or acting on my/our behalf has done, or will do, such an act.

I/We hereby certify that, to the best of my/our knowledge and belief, no person who is a Trustee, Member, or Employee of The MAC has any direct or indirect interest, in or connection with, the Organisation.

Signed Date

in the capacity of

duly authorised to give such certificates for and on behalf of:-

NAME OF ORGANISATION (in BLOCK CAPITALS)

.....

Postal Address:

.....

Telephone N^o: Fax N^o:

e-mail address:

F DECLARATION AND UNDERTAKING TO BE SIGNED BY ALL MAIN CONTRACTORS AND NOMINATED SUB-CONTRACTORS TENDERING FOR THE EXECUTION OF WORKS OR THE SUPPLY OF GOODS OR SERVICES

THE MAC - FAIR EMPLOYMENT AND TREATMENT (NORTHERN IRELAND) ORDER 1998

1 Article 64 of the Fair Employment and Treatment (N.I.) Order 1998 ("The Order") provides inter alia that a public authority shall not accept an offer to execute any work or supply any goods or services where the offer is made by an unqualified person in response to an invitation by a public authority to submit offers. Article 64 also provides that the public authority shall take all such steps as are reasonable to secure that no work is executed or goods or services supplied for the purposes of such contracts as are mentioned above by an unqualified person.

2 An unqualified person is either an employer who, having been in default in the circumstances specified in Article 62 (1) of the Order, has been served with a notice by the Fair Employment commission stating that he is not qualified for the purposes of Articles 64 to 66 of the Order, or an employer who, by reason of connection with an employer on whom has been served a notice to that effect, has also been served with such a notice.

3 Mindful of its obligations under the Act, The MAC has decided that it shall be a condition of tendering that a Tenderer shall not be an unqualified person for the purposes of Articles 64 to 66 of the Order.

4 Tenderers are, therefore, asked to complete this Declaration / Undertaking to confirm that they are not unqualified persons and to undertake that no work shall be executed or goods or services supplied by an unqualified person for the purposes of any contract with a Council to which Article 64 of the Order applies.

I / We hereby declare that I am / we are not an unqualified person for the purposes of the Fair Employment and Treatment (Northern Ireland) Order 1998. I / We undertake that no work shall be executed or goods or services supplied by an unqualified person for the purposes of any contract with The MAC to which Article 64 of the Order applies.

Signed by

Duly authorised to sign
for and on behalf of

Dated

G ENVIRONMENTAL MANAGEMENT

- i Does your organisation have a named officer responsible for Environmental Management? Yes / No

If 'yes', please state the name, position and qualifications of that person:

Name: _____
Position: _____
Qualifications: _____
: _____

- ii Does your organisation have an Environmental Policy? Yes / No
- iii Does your organisation have in place an Environmental Management System? Yes / No
- iv Does your organisation hold either of the following accreditations?

EMAS	Yes / No
ISO 14001	Yes / No

H CONTRACTOR'S INSURANCE DETAILS (PLEASE COMPLETE WHERE APPLICABLE)

Please provide the following information:

PUBLIC/ PRODUCTS LIABILITY:

- 1 Policy number _____
 - 2 Insurer _____
 - 3 Period of insurance _____ to _____
 - 4 Business description (as stated on policy) _____
 - 5 Limits of indemnity _____
- Public liability: £ _____ Products liability: £ _____

EMPLOYER'S LIABILITY:

- 1 Policy number _____
- 2 Insurer _____
- 3 Period of insurance _____ to _____
- 4 Business description (as stated on policy) _____
- 5 Limits of indemnity _____

CONTRACTORS ALL RISKS:

- 1 Policy number _____
- 2 Insurer _____
- 3 Period of insurance _____ to _____
- 4 Business description (as stated on policy) _____
- 5 Contract works limit of indemnity or sum insured _____

I CERTIFICATE RELATING TO BONA FIDE TENDER

1. The essence of tendering is that the client shall receive bona fide competitive tenders from all firms tendering. In recognition of this principle, we certify that this is a bona fide tender intended to be competitive and that we have not fixed or adjusted the amount of the tender by or under or in accordance with any agreement or arrangements with any other person.
2. We also certify that we have not:
 - a. communicated to a person other than the person calling for these tenders the amount or approximate amount of the proposed tender, except where the disclosure, in confidence, of the approximate amount of the tender was necessary to obtain insurance premium quotations required for the preparation of this tender;
 - b. entered into any agreement or arrangement with any other person that he shall refrain from tendering or as to the amount of any tender to be submitted;
 - c. offered or paid or given or agreed to pay or give any sum of money or valuable consideration directly or indirectly to any person for doing or having done or causing or having caused to be done in relation to any other tender or proposed tender for the said work any act or thing of the sort described above.
3. We undertake that we will not do any of the acts mentioned in paragraphs 2a, 2b or 2c above at any time before the acceptance or rejection of this tender.
4. In this certificate the word “person” includes any persons and any body or association, corporate or unincorporated and “any agreement or arrangement” includes any such transaction, formal or informal and whether legally binding or not.

Signed:

Block Capitals:

for and on behalf of:

Date:

J HEALTH AND SAFETY QUESTIONNAIRE

Health & Safety	
Does your organisation have a Health and Safety at Work Policy and Safety at Work System to implement this Policy?	YES/NO
Does your organisation make sure it complies with the Health & Safety at Work Act 1974 and all applicable regulations?	YES/NO
Does your organisation have a risk assessment process?	YES/NO
Please provide details and qualifications of person within the business and/or those advising the business on Health & Safety	
Has your organisation had any HSE or Local Authority Improvement or Prohibition Notice or warning letter in the last three years	YES/NO If YES Please detail below:

Note: The MAC reserves the right to request a copy of your organisation's Health & Safety certification/documentation at a future date.